Executive Order

Section 7 of the Subsistence Expense Act of 1926 approved June 3, 1926, (United States Code, Supplement I, Title 5, Sec. 827) provides:

> "The allowance and payment of actual expenses and the fixing and payment of per diem allowance, or portions thereof, shall be in accordance with regulations which shall be promulgated by the heads of departments and establishments and which shall be standardized as far as practicable and shall not be effective until approved by the President of the United States."

Executive Order No. 4493, dated August 11, 1926, issued pursuant to the provisions of the foregoing section, is hereby cancelled, effective March 1, 1929, and the following standardized regulations are hereby approved for the allowance and payment of actual expenses and the fixing and payment of per diem allowances for civilian officers and employees while traveling on official business and away from their designated posts of duty, effective March 1, 1929.

SUBSISTENCE

Definition.—Subsistence expenses will be held to include all charges for meals; lodgings; personal use of room during daytime; baths; fees to waiters, bell-boys, hotel maids, dining room stewards and others on vessels, and hotel servants in foreign countries, in connection with subsistence; telegrams and telephone calls reserving hotel accommodations; laundry; cleaning and pressing of clothing; fans and fires in rooms; transportation between places of lodgings or where meals are taken and places of duty.

The term "lodgings" does not include berths, sections, compartments or drawing rooms on sleeping cars or staterooms or berths on steamers, and the expenses thereof are not subsistence expenses.

Subsistence Allowance.—Unless otherwise expressly provided in an employee's commission or appointment, or by law, the official authorized to issue travel orders may, at his option, authorize in the order either a per diem allowance not to exceed $6.00 in lieu of subsistence expenses, or actual subsistence expenses, not to exceed $7.00 per day, while traveling on official business within the limits of the continental United States. While traveling on official business beyond the limits of the continental United States a per diem not to exceed $7.00 in lieu of subsistence expenses, or actual subsistence expenses not to exceed an average of $8.00 per day shall be allowed.

When absent from permanent station or designated post of duty for less than one day necessary actual subsistence expenses only will be allowed and then only if the absence is of such duration as constitutes a travel status within the meaning of the law authorizing payment of subsistence expenses.

If leave of absence of any kind begins or terminates within the traveler's prescribed hours of duty, subsistence allowance will terminate or begin at the same time. If the leave of absence does not begin or terminate within the traveler's prescribed hours of duty the traveler will be regarded as being in a subsistence status until midnight of the last day on which actual service is rendered preceding the leave of absence and from 12:01 o'clock a. m., of the day on which actual service is resumed. Presence at duty station on Sundays or holidays during daily prescribed hours of duty will be regarded as equivalent to actual service, if the traveler otherwise be in a duty status. Fractional leave of absence wholly within a day, where for half of the prescribed working hours or less, will be disregarded for sub-

sistence purposes; where it exceeds half of the prescribed working hours, no subsistence will be allowed.

No Allowance at Official Station.—Under no circumstances will subsistence expenses or per diem in lieu thereof be allowed an employee at his official station.

On Vessels.—On vessels where the price of passage includes meals, or at points where subsistence in kind is furnished by the Government, only actual expenditures for other subsistence expenses, as authorized herein, will be allowed, except when per diem in lieu of subsistence is authorized. (Gratuities to Government employees will not be allowed.)

Furnished by Government Agency Without Charge.—When an employee who is allowed a per diem in lieu of subsistence is furnished meals and (or) lodging by a Government agency without charge, a deduction of one-fifth of the per diem rate for each night's lodging, and one-fifth for each meal so furnished will be made from the authorized per diem rate.

Furnished by a Government Agency with Charge.—When lodging and (or) subsistence are furnished a traveler by a Government agency with charge, the traveler will be allowed the amount paid therefor within the limit prescribed for subsistence expenditures. In such case a traveler receiving a per diem in lieu of subsistence will be allowed the full authorized per diem, subject to the provisions of the preceding paragraph.

Subsistence Furnished Traveler by Member of His Family, by Another Government Employee, or By a Member of Family of Another Government Employee.—Actual expenses are not payable for meals and (or) lodging furnished WITHOUT CHARGE to a traveler by a member of his family, by another Government employee, or by a member of the family of another Government employee, nor when so furnished WITH CHARGE in the absence of a satisfactory showing that not so procured because of such personal or official relationship and of impracticability to otherwise procure, and that the member of the family so furnishing was not dependent upon the traveler for support. In the absence of such satisfactory showing, actual expenditures for other authorized subsistence expenses only will be allowed, and the per diem shall be one-fifth less for each night's lodging and for each meal so furnished. When meals and (or) lodging are so furnished WITH CHARGE and with such satisfactory showing actual expenses are allowable within the prescribed limit for authorized subsistence expenditures, and the full authorized per diem is payable, except that if lodging so furnished be in quarters received from the Government actual expenses therefor are not payable, and the per diem shall be one-fifth less for each night's lodging so furnished. The material facts shall be reported in the account.

Time of Departure and Arrival.—In all cases, the date and hour of departure from and arrival at official station and other points where such arrival or departure affects allowances for subsistence or per diem in lieu of subsistence must be shown in the expense account, and the date of arrival at the last-mentioned place of uncompleted duty should be shown on subsequent voucher or vouchers, so long as the traveler remains on duty at such place.

If duty at a particular place within the traveler's itinerary is prolonged beyond a period of thirty (30) days, his travel voucher should also state the approximate period to be covered by his duty assignment at such place, or the approximate date of return to official headquarters, or both, as well as any other pertinent facts which will tend to show that his duty at such place is of a temporary nature.

The time of arrival at and departure from a place will be considered as the hour at which the train, boat, or other conveyance used by the traveler actually leaves or arrives at its regular terminal.

Indirect Route or Interrupted Travel.—Where for traveler's personal convenience or through the taking of leave there is interruption of travel or deviation from the direct route, the subsistence allowed will not exceed that which would have been incurred on uninterrupted travel by the most economical usually traveled route.

ACTUAL EXPENSES FOR SUBSISTENCE

Definition.—Actual subsistence expenses will include the actual amount paid for any or all of the items specified in the foregoing definition of subsistence provided the total expense for any one day does not exceed the amount authorized by law or in the travel order and the charges are within the following limitations:

Sharing of Lodging.—When lodging is shared jointly with others, the fact should be stated in the expense account, and reimbursement will be limited to the traveler's proportionate share of the cost thereof.

Baths.—Baths not to exceed 50¢ per day when not provided for in charge for room.

Waiters.—Fees to waiters not to exceed 60¢ per day.

Bell-boys and Maids.—Fees to bell-boys and maids at hotels not to exceed a total of 30¢ in any one day.

Stewards on Vessels.—Fees to dining room stewards and others on vessels for services in connection with subsistence within the following limitations: River, Lake, or Bay boats—25 cents per day or fraction thereof; Ocean and Coastwise voyages—customary fees when itemized not to exceed a total of 10 per cent of the minimum first class commercial passage rate of the steamer on which travel is performed.

Fees in Foreign Countries.—Customary fees in foreign countries for services in connection with subsistence, not to exceed $1.00 per day.

Telegrams Reserving Hotel Accommodations.—Telegrams at Government rates reserving hotel accommodations shall be paid for in cash and the charges therefor included in subsistence expenses for initial date of the period for which the accommodations are occupied.

Laundry and Cleaning and Pressing of Clothes.—Laundry, not to exceed an average of $1.40 per week, and cleaning and pressing of clothes, not to exceed an average of $1.25 per week, with proportionate amounts for fractional parts of a week; in the case of travel performed beyond the limits of the continental United States these limitations will not apply. Charges for laundry and pressing and cleaning will be held to be distributable among the days of the period covered by the account to the extent that the total expenses for subsistence, exclusive of laundry and cleaning and pressing of clothes on such days are less than the amount authorized for subsistence. Reimbursement accounts must include all charges incurred for laundry and cleaning and pressing clothes during the period covered by the account, and these charges must not be carried forward from a previous account. Under no circumstances will reimbursement be allowed for such service rendered at official station. When two or more trips are covered by one account each trip shall be considered separately.

Fans and Fires.—The usual charge for fans or fires in rooms where the cost is not included in the price of the room.

Transportation to and from Lodgings.—Transportation where temporarily stationed incident to procuring subsistence between places of lodgings or where meals are taken and places of duty will constitute a part of the subsistence expenses.

Where the nature and location of the work where temporarily stationed are such that meals and lodging can not be procured there, and the daily travel required to procure subsistence at the nearest available place is not such as made by the public generally for that purpose, nor performed for the personal convenience of the traveler, the expense thereof will be considered as necessary transportation not incidental to subsistence. A full statement of the necessity for such daily travel should accompany the expense account.

Day Defined.—In computing subsistence expenses the day will be considered as beginning with breakfast and ending with lodging. Lodging obtained after midnight will be regarded as pertaining to the preceding day's subsistence.

Meals En Route.—Charges for meals taken en route to or from official station will be allowed only in accordance with the following table:

Breakfast when arrival is after 8:00 A. M.
Dinner when arrival is after 1:00 P. M.
Supper when arrival is after 6:00 P. M.
Breakfast when departure is before 8:00 A. M.
Dinner when departure is before 1:00 P. M.
Supper when departure is before 7:00 P. M.

Duplicate Lodging Charges.—A charge for lodging at a hotel and a charge for other sleeping accommodations for the same night must be explained.

Anti-Tipping Laws.—Reimbursement will not be made for tips pertaining to subsistence given in a State having anti-tipping laws prohibiting such tips.

PER DIEM IN LIEU OF SUBSISTENCE EXPENSES

Definition.—The per diem in lieu of subsistence expenses will be in lieu of all items specified in the foregoing definition of subsistence.

Day Defined.—In computing per diem in lieu of subsistence the calendar day (midnight to midnight) will be the unit. For the fractional part of a day at the commencement or ending of a travel status period, one-fourth of the rate for a calendar day will be allowed for each period of six hours or portion thereof.

CALVIN COOLIDGE

THE WHITE HOUSE,
December 19, 1928.

[No. 5014]

DEPARTMENT OF THE INTERIOR
January 17, 1929
Respectfully referred to
The Commissioner of the General Land Office
for information and guidance.

W. B. Acker

W. B. ACKER
Chief Clerk